

TENTATIVE RULINGS
Judge SHEILA RECIO, Dept. W8

Law & Motion is heard on Fridays at 9:30 a.m., *unless specially set.*

CIVIL COURT REPORTERS: Department W8 does not provide the services of an official court reporter for law and motion hearings. Please see the court's website for rules and procedures for court reporters obtained by the parties.

POSTING TENTATIVES: Department W8 endeavors to post tentative rulings for law and motion hearings by 5 p.m. on Thursdays. **Do NOT call the Department for a tentative ruling if none is posted.** The court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been prepared.

SUBMITTING ON THE TENTATIVE: If ALL sides intend to submit on the tentative ruling, please advise the Department's clerk or courtroom attendant by calling (657) 622-5908. If so advised, the tentative ruling shall become the court's final ruling and the prevailing party shall file and serve a Notice of Ruling and if appropriate, prepare a Proposed Order pursuant to Rule 3.1312 of the California Rules of Court. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

NO APPEARANCES: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court will determine if the matter is taken off calendar, the tentative ruling becomes the final ruling, or a different order is issued at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

REMOTE APPEARANCES: Department W8 conducts non-evidentiary proceedings, including law and motion via Zoom through the court's online check-in process available through the court's website at <https://www.occourts.org/general-information/covid-19-response/civil-covid-19-response/civil-remote-hearings>. All counsel and self-represented parties appearing for such hearings **must check-in at least 5 minutes before** the 9:30 a.m. hearing on Friday.

The court encourages the parties and attorneys to take advantage of remote appearances for non-evidentiary hearings to reduce travel time, parking costs, and potential hearing delays. However, keep in mind that potential technological or audibility issues could arise when using remote technology, which may require a delay of or halt the proceedings. To help

avoid such, please log in and test your equipment in advance of the hearing. Also, if technological or audibility issues arise during the proceeding, please call **(657) 622-5908**.

All remote video participants shall comply with the court's "**Guidelines for Remote appearances**", found at <https://www.occourts.org/system/files/guidelinesforremoteproceedings.pdf>.

IN-PERSON: Parties preferring to appear in-person for a law and motion hearing may do so, consistent with Section 367.75 of the Code of Civil Procedure and Orange County Local Rule 375.

PUBLIC ACCESS: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

July 17, 2026

#	Case Name	
2	Clawson vs. Caliray, Inc.	<u>Motion to Be Relieved as Counsel of Record</u> The court DENIES without prejudice attorney AVI M. ATTAL's (of CDF LABOR LAW LLP) Motion to Be Relieved as Counsel for Defendant CALIRAY, INC. The motion is unopposed and most of the requirements set forth in Rule 3.1362 of the California Rules of Court appear to have been met, including submitting the required form papers (e.g., Notice of Motion, Declaration, Proposed Order). The motion is nonetheless defective: The file does not contain a proof of service <i>on the client</i>, i.e., moving attorney fails to show that the moving papers were served on Defendant CALIRAY, INC. The proof of service filed with the moving papers on 5/22/26 (ROA 28) only shows service on attorneys for Plaintiff SHARON CLAWSON.

		The declaration filed in support of the motion states that a “copy of the proof of service [showing personal service on the client] will be filed with the court at least 5 days before hearing.” (Decl. in Support, ¶ 3(a)(1) [ROA 26].) No such proof of service has been filed. The deadline to file a proof of service has passed. Rule 3.1300(c) of the California Rules of Court requires that a proof of service of the moving papers be filed with the court no later than five court days before the date set for hearing. That deadline passed on 7/10/26. Moving Attorney to give notice.
3	Tran vs. Studio RSR	<u>Motion to Be Relieved as Counsel of Record</u> (x3) The court GRANTS attorney KAVEH NEWMEN’s (of NEWMEN LAW) unopposed Motions to Be Relieved as Counsel for Defendants (1) STUDIO RSR, (2) ROBERT ROBLES, and (3) RSR DESIGN GROUP LLC. The court finds moving attorney meets the requirements set forth in Rule 3.1362 of the California Rules of Court. The orders shall not become effective until the filing of a proof of service showing service of the order on the client. Moving attorney to give notice and file proof(s) of service within 14 days.
7	Ernesto Rojas trustee of The Rojas Living Trust Dated August 2021 vs. All persons unknown, claiming any legal or equitable right, etc.	<u>Motion to Determine Fair Market Value, etc.</u> (Status Conference) 1. Motion to Determine Fair Market Value, Etc. No Tentative. The referee and parties should be prepared to discuss the following at the hearing: Court-Appointed Partition Referee LUIS GALLEGOS moves pursuant to Code of Civil Procedure Sections 874.311 et

		seq., also known as the Partition of Real Property Act (the “Act”). The Act “applies to actions for partition of real property <u>filed on or after January 1, 2023</u>” (Code Civ. Proc., § 874.311(c), emphasis supplied) and includes a procedure by which cotenants may buy out the interests of the cotenant requesting partition by sale. The Act does not appear to apply here, as this action was filed on 5/24/22, i.e., this action was <u>filed before January 2023</u>. Instead, the sale procedures set forth in Code of Civil Procedure sections 873.510 et seq. apply to this partition sale, as reflected in the Interlocutory Judgment issued 7/28/25. <i>Status Conference</i> <i>No Tentative.</i>
8	Audenis vs. patrickaudenis.com	<u>Motion for Order Authorizing Limited Early Discovery</u> The court DENIES Plaintiff PATRICK AUDENIS’s motion for a court “order authorizing limited early discovery for the purpose of identifying the anonymous Doe defendant(s) in this action.” It remains unclear why Plaintiff needs to have an order from this court to have discovery. (See 1/30/26 and 4/17/26 Minute Orders.) Generally, a plaintiff does not need leave of court to serve subpoenas on third parties. Any discovery “stay” at the outset of an action applies to parties, not nonparties. Discovery holds and cutoffs do not restrict a party’s ability to conduct informal investigations, including contacting nonparty witnesses, obtaining public records, or otherwise gathering information from third parties (See <i>Pullin v. Superior Court</i> (2000) 81 Cal.App.4th 1161, 1165, fn. 4; <i>County of Los Angeles v. Superior Court</i> (2000) 82 Cal.App.4th 819, 829.) As Plaintiff is currently self-represented, he cannot himself issue a subpoena. The only persons authorized by law to

		issue a subpoena are a judge, court clerk, or an attorney at law who is an attorney of record. (Code Civ. Proc., § 1985(c).) Parties representing themselves who are not licensed to practice law are not authorized to issues subpoenas, and any subpoenas they attempt to issue are invalid. A subpoena however may be issued by the Clerk “signed and sealed but otherwise in blank to a party requesting it, who shall fill it in before service.” (Code Civ. Proc. § 1985(c). See also, Code Civ. Proc., § 2020.210(a) [“The clerk of the court in which the action is pending shall issue a deposition subpoena signed and sealed, but otherwise in blank, to a party requesting it, who shall fill it in before service”]; <i>McLeod v. Board of Pension Commissioners</i> (1970) 14 Cal.App.3d 23, 28 [“[w]hen a civil action is pending in the courts, issuance of an ordinary subpoena is a matter of statutory right and neither a clerk nor court has discretion to refuse such issuance (Citation), even though the subpoena may be subject to a motion to quash or suppress, after issuance.”].) Here, it appears that Plaintiff already obtained a signed and sealed subpoena from the Clerk. That subpoena is directed at “Custodian of Records, CLOUDFLARE INC” and the subpoena is attached to the motion at page 11. The subpoena, however, is not accompanied by a proof of service. As such, Plaintiff does not show that the subpoena has been served. In sum, it remains unclear what more Plaintiff seeks from this court, and accordingly, the court denies the motion. Clerk to give notice.
9	Lynch vs. Liberty Debt Solution, LLC	<u>Motion to Hold Judgment Debtor in Contempt</u> The court DENIES Judgment Creditors/Cross-Complainants PREFERRED FINANCE, LLC (fka LIBERTY DEBT SOLUTIONS, LLC) and BRIAN ROCHE’s motion to hold Cross-Defendant/Judgment Debtor THOMAS LYNCH (“Lynch”) in contempt of court.

Moving parties argue that Lynch failed to pay \$5,037.40 in monetary sanctions previously ordered by the court on 2/20/26.

Moving parties request a contempt order requiring Lynch to pay \$7,362.50 in additional attorney's fees and costs, or to fine him an additional \$1,000 and imprison him for 5 days. In addition, Moving parties request that Lynch be ordered to pay \$1,5000 to the court pursuant to Section 177.5 of the Code of Civil Procedure.

Where contempt is committed outside the view of the court, the charging party must file an affidavit or declaration of the facts constituting the contempt. (Code Civ. Proc., § 1211(a); *In re M.R.* (2013) 220 Cal.App.4th 49, 57.) A contempt proceeding is commenced by the filing of an affidavit showing the facts satisfying four requirements, the "charging allegations." (Code Civ. Proc., § 1211.) These include: "(1) the rendition of a valid order, (2) actual knowledge of the order, (3) ability to comply, and (4) willful disobedience. [Citation.]" (*Conn v. Superior Court* (1987) 196 Cal.App.3d 774, 784.) The affidavit frames the issues to be tried. (*Reliable Enterprises, Inc. v. Superior Court* (1984) 158 Cal.App.3d 604, 616.)

The filing of a sufficient affidavit is a "jurisdictional prerequisite" to a contempt proceeding and without one, any contempt order is void. (*In re Koehler* (2010) 181 Cal.App.4th 1153, 1169.) Each allegation must be pleaded by factual statements. (Code Civ. Proc. § 1211.5(b).) If the court finds the affidavit alleges sufficient grounds for contempt, it signs an "OSC re Contempt," setting the date and time for a hearing. (Code Civ. Proc. § 1212.)

Here, moving parties show: (1) the rendition of a valid court order awarding monetary sanctions payable within 30 days (ROA 615; Orland Decl. ¶ 4 [incorrectly identified as a second paragraph "1"]); (2) actual knowledge of the order, as Lynch attended the hearing and was served with notice thereafter (ROAs 615, 616); and disobedience, in that Lynch had personal notice of the contents of the order (see ROAs 615, 616).

		Moving parties, however, do not show Lynch’s ability to comply with the court’s 2/20/26 sanctions order. In fact, Lynch shows he is unable to pay the sanctions order. (See Lynch Decl. ¶¶ 3-11, Exh. 3 [re inability to work and income insufficient to cover monthly costs].) As such, moving parties have not shown willful disobedience, a prerequisite for a contempt order. Moreover, a sanctions order is enforceable in the same was as a “money judgment”. As such, contempt does not appear to be appropriate here. In sum, the motion is DENIED. Moving parties to give notice.
10	Torres vs. Northgate Gonzalez Markets, Inc	<u>Motion for Spoliation Sanctions</u> The court DENIES Plaintiff JAVIER NAVARRO TORRES’s Motion for Spoilation Sanctions against Defendant NORTHGATE GONZALEZ, LLC. <i>Sanctions for Spoilation of Evidence</i> The court may impose sanctions against anyone engaging in conduct that is a misuse of the discovery process. (See Code Civ. Proc., § 2023.030.) Sanctionable discovery abuses include, among other things, spoliation of evidence. (<i>Dept. of Forestry & Fire Protection v. Howell</i> (2017) 18 Cal.App.5th 154, 191, disapproved of on other ground by <i>Presbyterian Camp & Conference Centers, Inc. v. Superior Court</i> (2021) 12 Cal.5th 493.) Spoliation of evidence “is defined as the destruction or alteration of relevant evidence or the failure to preserve evidence for another party’s use in pending or future litigation.” (<i>Victor Valley Union High School District v. Superior Court</i> (2023) 91 Cal.App.5th 1121, 1139 [citing other cases].) “[T]he party moving for discovery sanctions based on the spoliation of evidence must make an initial prima facie showing that the responding party in fact destroyed evidence that had a substantial probability of damaging the moving party’s ability to establish an essential element of his claim or

defense.” (*Williams v. Russ* (2008) 167 Cal.App.4th 1215, 1227 [citing *National Council Against Health Fraud, Inc. v. King Bio Pharmaceuticals, Inc.* (2003) 107 Cal.App.4th 1336, 1346-1347 and cases cited therein].)

Importantly, the court must tailor the sanction for such conduct to “fit the crime.” (*Reedy v. Bussell* (2007) 148 Cal.App.4th 1272, 1293.) The court cannot impose sanctions as punishment; the choice of sanctions should not give the moving party more than it would have gotten had the discovery been responded to. (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 992; *Caryl Richards, Inc. v. Superior Court* (1961) 188 Cal.App.2d 300, 303.)

Monetary sanctions or evidentiary sanctions may be imposed for misuse of the discovery process. (See, e.g., *Kwan Software Engineering, Inc. v. Henning* (2020) 58 Cal.App.5th 57, 76 [regarding monetary sanctions in the form of attorneys fees based on a party and the party’s counsel’s egregious litigation conduct, including destroying and hiding evidence after communication to “get rid of certain” evidence]; *Victor Valley Union High School Dist.* (2023) 91 Cal.App.5th 1121, 1139.)

Terminating sanctions are also available but only where a party engages in egregious and deliberate misconduct. (*Dept. of Forestry*, 18 Cal.App.5th at 191-198 [finding the court did not abuse its discretion in imposing terminating sanctions where substantial evidence supported the department’s willful, repeated and egregious misuses of the discovery process, including presenting false, misleading, or evasive discovery responses, presenting false and evasive deposition testimony, engaging in spoliation of field notes despite probable litigation], disapproved of on other ground by *Presbyterian Camp & Conference Centers, Inc. v. Superior Court* (2021) 12 Cal.5th 493.)

In *Williams v. Russ*, the plaintiff sued his former attorney for legal malpractice. (*Williams v. Russ* (2008) 167 Cal.App.4th 1215, 1218.) While the action was pending, the plaintiff obtained his entire client file in the underlying litigation. (*Ibid.*) Plaintiff’s current attorney reviewed the

file, warned the defendant that evidence in the file supported new claims, and thereafter, amended the complaint accordingly. (*Id.* at 1224.) Over the next few months, the plaintiff fell into a pattern of either late or partial payments for storage facility where he kept the client file. (*Ibid.*) Several months later, the boxes containing his client file were destroyed. (*Id.* at 1218.) The plaintiff did not immediately disclose this fact until over three years later, after defendant made a discovery request for the entire client file. (*Ibid.*)

The *Russ* court concluded the plaintiff's conduct "at least raises an inference that, after cherry-picking favorable new information from the file, [the plaintiff] chose to stand by and allow the rest of the files to be destroyed" and "that at least one reason for having done so would be to prevent [the former attorney] from obtaining other documents from the file that were unfavorable to [the plaintiff]." (*Id.* at 1224.) The *Russ* court noted several evidentiary conflicts supporting the trial court's finding that the plaintiff had acted intentionally, including no evidence to support the plaintiff's claimed financial difficulties or medical condition excusing his conduct. (*See id.* at 1224-1225.) The *Russ* court ultimately affirmed the termination of the plaintiff's complaint, finding no abuse of discretion. (*Id.* at 1224-1228.)

Spoliation

Here, it is undisputed Defendant failed to preserve a 90-minute video file while litigation was reasonably foreseeable, in violation of Defendant's duty to preserve relevant evidence.

Plaintiff requests the following sanctions:

(1) **Issue sanctions** deeming liability-related facts established. Specifically, Plaintiff requests that the court issue an order establishing that (a) the floor was hazardous at the time of Plaintiff's fall; (b) Defendant failed to inspect or maintain the area; and (c) the missing video would have been unfavorable to Defendant.

(2) **Evidentiary sanctions** preventing Defendant from contradicting those facts.

(3) **Monetary sanctions** for attorney's fees and costs incurred in bringing this motion.

(4) **Terminating sanctions** if the court finds willfulness or bad faith.

First, terminating sanctions is inappropriate here. Plaintiff does not show the spoliation was willful. After its duty preserve arose, Defendant transferred the video to its network-attached system to prevent the video file from being overwritten as part of the routine operation of the electronic surveillance system and system server. (Ocegueda Decl. ¶ 6.) While in storage, the video file became corrupted. (See id. at ¶¶ 7-8.)

Plaintiff notes that Defendant chose a storage system with no backup, but Plaintiff cites no authority requiring a Defendant to maintain an extra copy of preserved evidence, and this court is aware of none.

Nor does Plaintiff show any intentional conduct causing the corruption. Rather, while the 90-minute video is apparently corrupted, Plaintiff was able to produce an incident clip and a still image, which supports a finding that the corruption was not intentional.

This case is distinguishable from the situation in *Williams v. Russ*, where the offending party's actions directly led to the destruction of the relevant client file. Here, the only evidence of possible wrongdoing is the corrupted video file itself and the fact Defendant had access to the video file. Without more, the facts are insufficient support a reasonable inference that Defendant intentionally, recklessly, or willfully corrupted or otherwise destroyed the file.

The requested issue and evidentiary sanctions also appear to be inappropriate here. First, the court record includes only hearsay evidence that the video file is beyond full or even partial restoration. (See Ocegueda Decl. ¶ 9.) There is

		no evidence that Plaintiff requested repair logs, error logs, or emails documenting the corruption event and no evidence proffered that Defendant failed to provide such. There is also no evidence a forensic expert reviewed the relevant system(s) and documentation and concluded the file is unrestorable. The court notes that whether and to the extent the video file can be restored affects the level of prejudice Plaintiff may suffer. Further, assuming the video file is corrupted, Plaintiff fails to show that the corrupted evidence had a substantial probability of damaging Plaintiff's ability to establish an essential element of his claim. (<i>Williams v. Russ</i>, 167 Cal.App.4th at 1227.) No evidence is presented suggesting the video would have shown a failure to inspect or maintain the area or would have contained other unfavorable evidence. Again, the court cannot impose sanctions as punishment and Plaintiff cannot obtain more than he would have gotten had the evidence been produced in a non-corrupted form. (See e.g, <i>Doppes</i>, 174 Cal.App.4th at 992.) As for the request for monetary sanctions for attorney fees and costs in bringing this motion, Plaintiff does not request or support any particular amount of monetary sanctions. Code of Civil Procedure section 2023.040 requires any request for sanction be "accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought." Due process also requires notice of the amount being requested. In sum, the court DENIES Plaintiff's motion for sanctions. Defendant to give notice.
11	Vo vs. Mercedes-Benz USA, LLC	<u>Motion to Compel Arbitration</u> The court GRANTS Defendant MERCEDES-BENZ USA, LLC's ("Moving Defendant") motion to compel Plaintiff PHAT TAN VO to arbitrate his claims against Defendant Mercedes-Benz and staying this action pending completion of arbitration.

Moving Defendant submits a copy of the California Motor Vehicle Lease Agreement apparently signed by Plaintiff on or about 11/5/25. (Leung Decl., ¶ 2, Exh. 1.) The document contains the following broad arbitration provision:

“Any claim or dispute, whether in contract, tort or otherwise (including any dispute over the interpretation, scope or validity of this lease, arbitration section or the arbitrability of any issue), between you and us or any of our employees, agents, successors, assigns, or the vehicle distributor, including Mercedes-Benz USA LLC (each a ‘Third Party Beneficiary’), which arises out of or relates to a credit application, this lease, or any resulting transaction or relationship arising out of this lease (including any such relationship with third parties who do not sign this contract) shall, at the election of either you, us, or a Third Party Beneficiary, be resolved by a neutral, binding arbitration and not by a court action.”

(Leung Decl., Exh. 1, p. 4, emphasis supplied.)

Third-Party Beneficiary

Plaintiff does not contest the validity or authenticity of this agreement. Plaintiff’s primary challenge is that Moving Defendant lacks standing to enforce the agreement as a third-party beneficiary.

“Under certain circumstances, a nonsignatory to an arbitration agreement may seek to enforce it against a signatory. Whether such enforcement is permissible is a question of state law.” (*Ford Motor Warranty Cases* (2023) 89 Cal.App.5th 1324, 1332 [citing *Kramer v. Toyota Motor Corp.* (9th Cir. 2013) 705 F.3d 1122, 1128; *Thomas v. Westlake* (2012) 204 Cal.App.4th 605, 614, fn. 7].) State law provides six theories by which a nonsignatory may compel or be bound to arbitrate. These theories include: “(a) incorporation by reference; (b) assumption; (c) agency; (d) veil-piercing or alter ego; (e) estoppel; and (f) third-party beneficiary’ [citations].” (*Suh v. Superior Court* (2010) 181 Cal.App.4th 1504, 1513.)

When considering whether a third party may bring a breach of contract, courts determine “not only (1) whether the third party would in fact benefit from the contract, but also (2) whether a motivating purpose of the contracting parties was to provide a benefit to the third party, and (3) whether permitting a third party to bring its own breach of contract action against a contracting party is consistent with the objectives of the contract and the reasonable expectations of the contracting parties. All three elements must be satisfied to permit the third party action to go forward.” (*Goonewardene v. ADP, LLC* (2019) 6 Cal.5th 817, 829-830.)

Here, in disputing application of the third-party beneficiary doctrine, Plaintiff relies heavily on *Ford Motor Warranty Cases* (2023) 89 Cal.App.5th 1324 (“*Ochoa*”), which is currently under review by the California Supreme Court.

The case is distinguishable. In *Ochoa*, arbitration provisions expressly limited enforcement to “only three parties – [Plaintiff], the dealership, and the assignee....” (*Ford Motor Warranty*, 89 Cal.App.5th at 1338 [“Its direct benefits are expressly limited to those persons who might rely on it to avoid proceeding in court – the purchaser, the dealer, and the dealer’s employees, agents, successors or assigns.”]; *Ngo*, 23 F.4th at 946.) In both cases, the express language of the agreements limited enforcement to either “you or we,” which included limited definitions. (*Ford Motor Warranty*, 89 Cal.App.5th at 1338 and *Ngo*, 23 F.4th at 946.)

In *Ochoa*, based on the express language of the agreement, the court determined there was no intent to benefit the manufacturers, no motivation to benefit the manufacturers and permitting enforcement would be “inconsistent with the ‘reasonable expectations of the contracting parties.’” (*Ford Motor Warranty*, 89 Cal.App.5th at 1338-1340.)

In contrast, the arbitration agreement here expressly names Moving Defendant as a third-party beneficiary. (Leung Decl., Exh. 1.) By expressly designating Moving Defendant as a third-party beneficiary entitled to enforce the arbitration provision, the Lease Agreement clearly

benefits, and communicates an intent to benefit, Moving Defendant. Permitting Moving Defendant to enforce the arbitration provisions is also consistent with the objectives of the contract and the reasonable expectations of the parties. As such, *Goonewardene* elements are met. (*Goonewardene v. ADP, LLC* (2019) 6 Cal.5th 817, 830.)

As explained in *Ochoa*, “If the signatories had intended to benefit [the manufacturer], such a purpose would have been easy to articulate. They could have simply named [the manufacturer] – directly or by class as the vehicle’s manufacturer – as a person entitled to compel arbitration.” (*Ford Motor Warranty*, 89 Cal.App.5th at 1339.) Such is in contrast to the instant action where the arbitration provision expressly names the manufacturer, Moving Defendant.

Unconscionability

Plaintiff also argues that the agreement is not enforceable because it is unconscionable.

Procedural and substantive unconscionability “must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability.” (*Armendariz v. Foundation Health Psychcare Servs., Inc.* (2000) 24 Cal.4th 83, 114.) However, they need not be present in the same degree. (*Ibid.*) A sliding scale approach is used and the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required. (*Ibid.*) “The party resisting arbitration bears the burden of proving unconscionability.” (*Pinnacle*, 55 Cal.4th at 247.)

“Procedural unconscionability focuses on the elements of oppression and surprise.” (*Serafin v. Balco Properties Ltd., LLC* (2015) 235 Cal.App.4th 165, 177.) “Oppression arises from an inequality of bargaining power which results in no real negotiation and an absence of meaningful choice. Surprise involves the extent to which the terms of the bargain are hidden in a prolix printed form drafted by a party in a superior bargaining position.” (*Ibid.*) “[A] finding of procedural unconscionability does not mean that a contract will not be enforced, but rather that courts will

scrutinize the substantive terms of the contract to ensure they are not manifestly unfair or one-sided.” (*Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1244.)

Plaintiff argues that the arbitration agreement is procedurally unconscionable because it was a contract of adhesion, as it was offered to Plaintiff on a take-it-or-leave-it basis. The court finds that there is some level of procedural unconscionability.

“Substantive unconscionability focuses on the actual terms of the agreement and evaluates whether they create ‘overly harsh’ or ‘one-sided’ results.” (*Serafin*, 235 Cal.App.4th at 177.) “A contract term is not substantively unconscionable when it merely gives one side a greater benefit; rather, the term must be ‘so one-sided as to ‘shock the conscience.’” (*Pinnacle*, 55 Cal.4th at 246.)

Citing *Cook v. University of Southern California* (2024) 102 Cal.App.5th 312, Plaintiff argues that the arbitration provision is substantively unconscionable because it can be enforced by too many parties who are not specifically named, and because the Lease provides that it can be assigned without Plaintiff’s consent. In *Cook*, the Court of Appeal held that an arbitration agreement was unconscionable because it would have required the plaintiff to arbitrate any claim she had against the defendant, even those unrelated to her employment with the defendant. (*Id.* at 317, 326-327.)

By contrast, the arbitration agreement here is limited to matters involving the subject vehicle and the provision is not one-sided.

Accordingly, **the Motion to Compel Arbitration is GRANTED and the action STAYED**, until further order of this court and pending the completion of arbitration between Plaintiff and Moving Defendant.

The court sets an ADR Review Hearing for December 14, 2026 at 9:00 a.m. in Department W08. Plaintiff SHALL file a Status Report no later than 10 court days before the hearing.

		The court VACATES the Case Management Conference scheduled for 8/17/26. Defendant to give notice.
12	Villalobos vs. Elizarraraz	<u>Demurrer</u> The court SUSTAINS Defendant ELIZABETH LARA's (erroneously sued as JUANA ELIZABETH JIMENEZ ELIZARRARAZ) unopposed entire demurrer to the Complaint, with 30 days leave to amend. The 2-page Complaint merely lists five purported causes of action without alleging a factual basis for each. (See Compl., p. 1, line 28 to p. 2, line 7.) Such is insufficient to survive the demurrer. <i>Upcoming Motion to Strike: OFF-CALENDAR</i> The court takes the scheduled 8/7/26 hearing on Defendant's motion to strike OFF-CALENDAR. (ROA 21.) The motion to strike is MOOT in light of the court's ruling on the demurrer. Moreover, while the motion to strike was filed on the same day that the demurrer was filed, it was not set for the same hearing date. The motion to strike is currently set for hearing on 8/7/26. When a demurrer is also filed, a motion to strike "must be noticed for hearing and heard at the same time as the demurrer." (Rules of Court, rule 3.1322(b).) As explained in the Rutter Guide, "Where there are grounds both for demurring and moving to strike, the two documents must be filed together and noticed for the same hearing." (Cal. Prac. Guide Civ. Pro. Before Trial ¶ 7:162, citing Code Civ. Proc., § 435(b)(3), Rules of Court, rule 3.1322(b).) As such, the court takes the motion to strike set for 8/7/26 OFF-CALENDAR.

		<i>Upcoming CMC: CONTINUED</i> The court CONTINUES the scheduled Case Management Conference from 8/17/26 to 11/9/26 at 10:00 am in Dept. W8. All appearing parties SHALL file and serve a timely case management statement at least 15 calendar days prior to the continued hearing as required by the rules, including California Rules of Court rule 3.725 and Local Rule 369. Defendant to give notice.
13	FatPet Awards vs. Lovell	<u>Demurrer (re First Amended Complaint)</u> <u>Motion to Strike</u> Defendants ANDRES A. MUNT-LOVELL and NICHOLAS P. MUNT-LOVELL (collectively, “Defendants”) demur to the First Amended Complaint (“FAC”) filed by Plaintiffs THE INTERNATIONAL CAT ASSOCIATION, INC. (“TICA”) and FATPET AWARDS (“FatPet”) and move to strike portions of the FAC. As explained below, the court OVERRULES the entire demurrer and DENIES the entire motion to strike. <i>Procedural Issues</i> Plaintiffs argue that Defendants improperly combined the demurrer and the motion to strike in violation of California Rules of Court, rules 3.1320(a) and 3.1322(a). Rule 3.1320(a) provides, “Each ground of demurrer must be in a separate paragraph and must state whether it applies to the entire complaint, cross-complaint, or answer, or to specified causes of action or defenses.” Rule 3.1322(a) provides, “A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively.”

Although Defendants filed one “Notice” for both the demurrer and motion to strike (ROA 94), Defendants also separately filed a demurrer (ROA 92) and a motion to strike (ROA 93). The combined notice does not warrant denial of the motions.

Plaintiffs also argue that Defendants (who are self-represented) have poorly prepared their moving papers by using Artificial Intelligence (“AI”) and have not filed the papers in good faith. Plaintiffs do not point to any ghost citation from Defendants or otherwise point to any particular citation or argument that is invalid. Nor can the court make a finding here that the moving papers were presented for a bad faith purpose. As such, there is no basis to overrule the demurrer or deny the motion to strike based on Plaintiffs’ argument that the moving papers were not made in good faith and/or uses AI. See however the discussion below, regarding Defendants failure to provide much analysis for the motions.

Both sides must be mindful of the following: Courts must treat a self-represented party in the same manner as a represented party. And self-represented parties must follow the same rules of procedure, including the same rules of professional conduct that apply to attorneys, to extent that those rules govern conduct in the actual course of litigation.

Defendants’ Request for Judicial Notice: The court **DENIES** Defendants’ Requests for Judicial Notice (ROAs 86, 116). There is no apparent basis to take judicial notice of certain TICA board minutes, an invoice, and by-laws. Moreover, the documents do not appear to be relevant to the issues presented in either the demurrer or motion to strike. Also, the second request for judicial notice was submitted with the reply papers (ROA 116) and “[t]he general rule of motion practice ... is that new evidence is not permitted with reply papers.” (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537.)

1. Demurrer

The court **OVERRULES** Defendants' entire demurrer. Defendants generally demur to the entire FAC. (Code Civ. Proc., § 430.10(e).)

The FAC asserts the following causes of action against each defendant:

1. Breach of contract
2. Breach of contract
3. Common counts
4. Common counts (money had and received)
5. Fraud
6. Fraud

Defendants begin their brief by arguing that “[o]n its face, the FAC alleges claims that are time-barred, internally inconsistent, and unsupported by any cognizable legal theory. Because these defects are legal rather than factual, further amendment would be futile.” (Mov. Pts. & Auth. at p. 2, lines 2-5.)

The moving papers thereafter primarily consist of a series of general legal statements with caselaw citations, and little to no analysis. The moving papers do not discuss the causes of action separately, except to generally refer to “contract claims” and “fraud allegations” for example. As there are multiple contract and fraud claims in the FAC, it’s not clear which cause of action is being attacked at times.

Reviewing the little analysis provided, the demurrer appears to lack merit. For example, Defendants appear to argue that contract claims (the first and second causes of action) are barred by the two-year limitations period applicable to obligations not founded on an instrument in writing because Plaintiffs did not file this action until 8/21/25. But even assuming a two-year limitations period applies, the argument does not show that claims are time-barred. According to the FAC, Defendants’ breaches continued through September 2023. The action was filed less than two years thereafter, on 8/21/25 (i.e., within the purported 2-year limitations period).

As another example, Defendants state (without analysis) that “[t]he FAC pleads no terms, obligations, or consideration” in support of the contract causes of action. However, the FAC alleges the following for example:

On or about August 2020, TICA and Defendants entered into a partly oral and partly written agreement under which Defendants agreed to organize and host TICA’s annual awards banquet and related events, collect the associated revenues, and use those funds to pay the event expenses. (FAC, ¶ BC-1.) From approximately August 2020 through September 2023, Defendants allegedly breached the agreement by collecting revenues from banquet tickets, show entries, vendor spaces, TICA sponsorships, and other sources but failing to pay the event expenses. (FAC, ¶ BC-2.) TICA alleges that it performed its obligations, except for those it was prevented or excused from performing, and suffered resulting damages. (FAC, ¶¶ BC-3–BC-4.)

On or about December 2022, Plaintiff FatPet and Defendants entered into a partly oral and partly written agreement under which FatPet agreed to design and manufacture custom awards and related items for the 2023 TICA Annual Awards and show, and Defendants agreed to pay \$6,400, plus shipping and handling, before the event began. (FAC, ¶ BC-1.) On or about August 10, 2023, Defendants allegedly breached the agreement by failing to pay the amounts due. (FAC, ¶ BC-2.) FatPet alleges that it performed its obligations, except for any performance that was prevented or excused, and suffered \$6,357.20 in resulting damages. (FAC, ¶¶ BC-3–BC-4.)

In other words, the FAC adequately asserts causes of action for breach of contract and Defendants have failed to support their conclusory argument. The FAC alleges the existence of a contract, performance or excuse for nonperformance, Defendants’ breach, and resulting damages.

As for the fraud claims, the FAC alleges sufficient facts. For example, the FAC alleges the following:

Defendants Nicholas and Andres represented that they would organize and host the banquet, show, and related events; collect sponsorship and other event revenues; use those revenues to pay the event expenses; advance any additional funds necessary to conduct the event; and ensure that TICA would not be responsible for the event costs other than providing sponsorships. (FAC, ¶¶ FR-1, FR-2, Attachment FR-2.)

Defendants did not intend to use the collected funds to pay event expenses and instead intended to, and did, divert those funds for their personal use. As a result, TICA was required to pay the outstanding expenses to allow the show and awards banquet to proceed. (FAC, ¶ FR-2.b.)

When Defendants made the representations, they knew they were false, or had no reasonable ground for believing the representations were true. (FAC, ¶ FR-2.c.)

Defendants concealed the fact they had no ability to fund the events and no ability to cover any of the expenses associated with the events. (FAC, ¶ FR-3.)

Defendants promised without intent to perform. (FAC, ¶ FR-4.)

In justifiable reliance on those representations, TICA approved Defendants to host the annual banquet and related events. (FAC, ¶ FR-5.)

As a result, Plaintiff incurred damages. (FAC, ¶ FR-6.)

The court finds the allegations sufficient to overcome the demurrer.

The general demurrer is OVERRULED.

Plaintiffs to give notice.

2. Motion to Strike

The court **DENIES** Defendants' motion to strike punitive damages allegations (FAC ¶ FR-7 and Prayer) and alter-ego allegations (Attachment 9a).

Punitive damages are available where plaintiff shows by clear and convincing evidence that defendant was guilty of oppression, fraud or malice. (Civ. Code, § 3294(a); *Krieger v. Pacific Gas & Elec. Co.* (1981) 119 Cal.App.3d 137, 148.) Malice, oppression and fraud are defined as follows: (1) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. (2) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. (3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury. (Civ. Code, § 3294(c).)

The complaint must allege specific factual allegations to support a request for punitive damages. (See, e.g., *Anschutz Entertainment Group, Inc. v. Snepp* (2009) 171 Cal.App.4th 598, 643 [allegations that defendant's conduct was intentional, willful, malicious, performed with ill will, and in conscious disregard of plaintiffs' rights does not satisfy the specific pleading requirement].) "Not only must there be circumstances of oppression, fraud, or malice, but facts must be alleged in the pleading to support such a claim" (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.)

As noted above, the FAC alleges that Defendants made promises to TICA without intending to perform them and diverted event funds for their own use. These allegations sufficiently support punitive damages based on fraud.

To recover on an alter ego theory, two requirements must be satisfied: (1) there be such unity of interest and ownership that the separate personalities of the corporation and the individual no longer exist and (2) if the acts are treated as those of the corporation alone, an

		inequitable result will follow. (<i>Automotriz Del Golfo De California S.A. De C.V. v. Resnick</i> (1957) 47 Cal.2d 792, 796; <i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 415.) Defendants argue, but do not show, that the alter-ego allegations are merely conclusory or otherwise subject to being stricken under Code of Civil Procedure section 436. Attachment 9a alleges that Defendants disregarded business formalities, commingled personal and SeaCats funds, used SeaCats' assets to pay personal expenses, inadequately capitalized and depleted SeaCats, and operated it as a shell or conduit for their personal affairs. (FAC, Attachment 9a, ¶ 1.) It further alleges that respecting SeaCats' separate existence would sanction fraud or produce an inequitable result. (Ibid.) These allegations track recognized alter-ego factors and sufficiently plead both unity of interest and an inequitable result. Accordingly, the motion to strike the alter-ego allegations is DENIED. Defendants (ANDRES A. MUNT-LOVELL and NICHOLAS P. MUNT-LOVELL) SHALL answer the First Amended Complaint within 30 days. Plaintiffs to give notice.
15	Young vs. Young	<u>Demurrer (re First Amended Complaint)</u> <u>Motion to Strike</u> 1. Demurrer The court OVERRULES Defendant BARBARA YOUNG's demurrer to the First Amended Complaint (FAC) filed by Plaintiff BRIAN YOUNG. RJN - GRANTED: As requested by Defendant, the court takes judicial notice of (1) the original Complaint, (2) the notice of ruling on Defendant's demurrer to the Complaint and motion to strike, and (3) the First Amended Complaint. (Evid. Code, § 452(d).)

The FAC asserts the following four causes of action against Defendant: (1) breach of contract, (2) conversion, (3) intentional infliction of emotional distress (IIED), and (4) promissory estoppel. The FAC was filed after Defendant successfully demurred to the original Complaint.

1ST C/A (breach of contract)

Barbara argues the first cause of action in the FAC for breach of contract fails because: (1) Brian lacks standing as the alleged funds were intended for Brian's sons and Brian had no authority to contract over the father's Ally Bank account; (2) the FAC fails to plead consideration and instead alleges, at most, an unenforceable promise to make a gift; (3) the claim is time-barred; and (4) it is uncertain.

Standing: According to the FAC, which must be read in a light favorable to Plaintiff, Barbara's promise was made *to Brian*, that Barbara agreed to transfer the funds *to Brian*, and that Brian's intent was to use those funds for his sons' benefit. (FAC ¶¶ 18–19, 34.) Thus, the sons' benefit was derivative of Brian's rights under the agreement. Although their father owned the Ally Bank account during his lifetime, the FAC alleges that he knew of and agreed to the beneficiary arrangement, and the alleged contract concerned what Barbara would do with the funds after their father's death. (FAC ¶¶ 20–21, 34.)

Consideration: The FAC also now adequately alleges consideration in the form of both a benefit conferred on Barbara and a legal detriment suffered by Brian. (FAC ¶ 36.) Consideration may be by act, forbearance to act, promise, or change in legal status. (Civ. Code, §§ 1605–1615.) Whether that consideration is adequate or factually supported is not properly resolved on demurrer.

SOL: Further, the FAC is not time-barred on the face of the FAC. Defendant points to both Section 366.3 and 339 of the Code of Civil Procedure.

Section 366.3 provides a one-year limitations period, running from the date of the decedent's death, for claims

arising from a promise to make a distribution from an estate or trust after death. Because Brian seeks to enforce Barbara’s alleged promise, not a promise by their father, section 366.3 appears inapplicable.

Section 339 provides for a two-year limitations period for a cause of action based upon a breach of an *oral* contract and a four-year limitations period for a cause of action based upon breach of a *written* contract. Here, the FAC does *not* specifically allege whether the cause of action is based upon an oral or written agreement. Rather, the FAC alleges an agreement generally with written and oral acknowledgements, assurances and/or confirmations. (See FAC, ¶¶ 2, 22, 63.)

Notably, despite quoting the demurrer statute, Defendant did not demur on the ground that “it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct.” (Code Civ. Proc., § 430.10(g). See also, Mov. Pts. & Auth. at p. 5, line 24-p.6, line 1 [quoting Code Civ. Proc., § 430.10].)

If based on an oral contract, the claim *may* be time-barred. The FAC alleges that Defendant “unequivocally promised that, *upon their father’s death*, she would immediately transfer to Brian the funds she received so he could use them for his sons’ benefit.” (FAC, ¶ 1, emphasis supplied.) The FAC alleges that their father died on or about 4/4/23. (FAC, ¶ 23.) Plaintiff did not file this action until 8/8/25 – over 2 years after their father’s death. Notably, however, an acknowledgement may toll the limitations period. (See, e.g., Code Civ. Proc., § 360. See also, *Dawadi v. Adhikari* (2026) 120 Cal.App.5th 558, 562 [discussing distinction between acknowledgements made before and after the statute of limitations has run].)

Here, the FAC does not establish on its face that the claim is time-barred as argued by Defendant.

Uncertainty: Finally, Defendant fails to show how the first cause of action is uncertain. A party attacking a pleading on “uncertainty” grounds must specify how and why the pleading is uncertain, and where that uncertainty can be found in the challenged pleading. (*Fenton v. Groveland*

Community Services Dept. (1982) 135 Cal.App.3d 797, 809 (disapproved on other grounds in *Katzberg v. Regents of the University of California* (2002) 29 Cal.4th 300).) Here, the demur merely concludes, without showing, that the first cause of action is uncertain.

The demurrer to the first cause of action for breach of contract is therefore OVERRULED.

2nd C/A (conversion)

Defendant argues that insufficient facts are alleged in the FAC to support the second cause of action for conversion and that the claim is also uncertain.

Conversion is the wrongful exercise of dominion over the personal property of another. (*Mendoza v. Rast Produce Co., Inc.* (2006) 140 Cal.App.4th 1395, 1403-1404; *Los Angeles Fed. Credit Union v. Madatyan* (2012) 209 Cal.App.4th 1383, 1387 [wrongful interference with insurance proceeds].) The elements for a claim of conversion are: “(1) the plaintiff's ownership or right to possession of the property; (2) the defendant's conversion by a wrongful act or disposition of property right; and (3) damages.” (*IIG Wireless, Inc. v. Yi* (2018) 22 Cal.App.5th 630, 650.)

The FAC sufficiently alleges each element of conversion. It alleges Brian owned, possessed, or had the immediate and exclusive right to possess the personal property located at the Property, including Father’s diaries, Mother’s Japanese cookware, a Tiffany lamp, Dansk bowls and dishes, Asian rugs, silverware, and other household items. (FAC ¶ 40.) It further alleges Barbara expressly told Brian that she did not want any of the personal property and that Brian could have all of it, and that Brian accepted that offer. (FAC ¶ 41.) The FAC alleges Barbara thereafter intentionally and without Brian’s consent took possession of, removed, and/or destroyed the property, thereby exercising dominion and control over it in a manner inconsistent with Brian’s rights. (FAC ¶¶ 42–45.) Finally, the FAC alleges Brian suffered damages, including the fair market value of the converted property and consequential damages. (FAC ¶ 46.)

While Defendant complains that the terms of a family trust are not set forth in the FAC and that a copy is not attached to the FAC, Defendant fails to show that such is required to overcome the demurrer.

Nor is the claim uncertain. A demurrer for uncertainty is not intended to reach the failure to incorporate sufficient facts in the pleading, but is directed at the uncertainty existing in the allegations actually made. (*People v. Lim* (1941) 18 Cal. 2d 872, 883.) “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (*Khoury v. Maly’s of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

Accordingly, the demurrer to the second cause of action for conversion is OVERRULED.

3rd C/A (IIED)

Defendant argues that insufficient facts are alleged in the FAC to support the third cause of action for intentional infliction of emotion distress and that the claim is also uncertain. More specifically, Defendant argues that the FAC fails to include allegations that the alleged “extreme and outrageous conduct” occurred in Plaintiff’s presence. According to the FAC, Defendant intentionally “destroyed, discarded, or otherwise permanently disposed of his Father’s personal diaries and his Mother’s Japanese cookware” after being told of their ownership and special significance to Plaintiff. (FAC, ¶ 51.)

To prevail on an intentional infliction of emotional distress claim, plaintiff must prove: “(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct.” (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050 [internal quotes omitted].) The conduct must be so extreme as to be beyond all bounds of decency tolerated by society. (*Hughes v. Pair*, 46 Cal.4th at 1050-1051.) Mere

indignities, insults, threats, annoyances, petty oppressions and the like are not enough. (*Id.* at p. 1051.) The test is whether a reasonable community member, hearing what defendant did, would feel resentment and exclaim “Outrageous!” (Rest.2d Torts § 46, comm. d; see *Cochran v. Cochran* (1998) 65 Cal.App.4th 488, 494.)

Behavior may be considered “outrageous” if defendant knows plaintiff is vulnerable to injuries through mental distress; or abuses a relation or position that gives defendant power to damage plaintiff's interest; or acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress. (See *McDaniel v. Gile* (1991) 230 Cal.App.3d 363, 372-373.)

The FAC adequately alleges intentional infliction of emotional distress. It alleges the intentional destruction of specifically identified, irreplaceable family heirlooms after Defendant was told they belonged to Plaintiff and held profound sentimental value to him. (FAC ¶¶ 49–52.) The FAC also adequately alleges that the conduct was directed at Plaintiff because Defendant knew the items belonged to Plaintiff, knew their special emotional significance to him, and allegedly destroyed them for that reason. (FAC ¶¶ 50–53.)

Physical presence is not required where the alleged conduct was directed at the plaintiff. (See *Christensen v. Superior Court* (Pasadena Crematorium of Altadena) (1991) 54 Cal.3d 868, 903-906 [IIED conduct “must be directed at the plaintiff, or occur in the presence of a plaintiff of whom the defendant is aware”].) Further, the FAC alleges targeted emotional harm from the intentional destruction of irreplaceable heirlooms, not merely economic loss from damaged property.

The court finds that sufficient allegations are pled to overcome the demurrer and therefore OVERRULES the demurrer to the third cause of action.

4th C/A (promissory estoppel)

Defendant first argues that the fourth cause of action for promissory estoppel is inconsistent with the first cause of

action for breach of contract. A plaintiff however may plead alternative and inconsistent theories. (*Mendoza v. Continental Sales Co.* (2006) 140 Cal.App.4th 1395, 1402.)

Without much analysis, Defendant also argues that “the same standing and statute of limitations issues” raised with the breach of contract claim apply. The argument fails for the reasons discussed above.

As such, the court **OVERRULES** Defendant’s demurrer to the fourth cause of action for promissory estoppel.

Plaintiff to give notice.

2. Motion to Strike

The court **DENIES** Defendant BARBARA YOUNG’s motion to strike the following portions of the First Amended Complaint (FAC) filed by Plaintiff BRIAN YOUNG concerning punitive damages: ¶ 47 and Prayer ¶ 3.

Punitive damages are available where plaintiff shows by clear and convincing evidence that defendant was guilty of oppression, fraud or malice. (Civ. Code, § 3294(a); *Krieger v. Pacific Gas & Elec. Co.* (1981) 119 Cal.App.3d 137, 148.) Malice, oppression and fraud are defined as follows: (1) “Malice” means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. (2) “Oppression” means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights. (3) “Fraud” means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury. (Civ. Code, § 3294(c).)

The complaint must allege specific factual allegations to support a request for punitive damages. (See, e.g., *Anschutz Entertainment Group, Inc. v. Snepp* (2009) 171 Cal.App.4th 598, 643 [allegations that defendant’s conduct

		was intentional, willful, malicious, performed with ill will, and in conscious disregard of plaintiffs’ rights does not satisfy the specific pleading requirement[.]) “Not only must there be circumstances of oppression, fraud, or malice, but facts must be alleged in the pleading to support such a claim” (<i>Grieves v. Superior Court</i> (1984) 157 Cal.App.3d 159, 166.) Here, the FAC alleges specific facts sufficient to overcome the motion to strike. For example, the FAC alleges Defendant told Plaintiff he could have all of the personal property, that Plaintiff accepted ownership, and that Defendant was instructed through counsel not to sell, remove, or dispose of any items without Defendant’s consent. (FAC ¶¶ 30, 31, 40–42.) Despite that notice, Defendant allegedly intentionally removed or destroyed the property, including their Father’s diaries and Mother’s Japanese cookware, knowing the items belonged to Defendant and had unique and irreplaceable sentimental value. (FAC ¶¶ 43–47, 49–52.) These allegations are sufficient at the pleading stage to meet the requirements of Civil Code section 3294. Accordingly, the motion to strike the punitive damages allegation is DENIED. Defendant SHALL answer the FAC within 30 days. Plaintiff to give notice.
